

26SMCV02048 26SMCV02048

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TENTATIVE RULING

July 21, 2026

26SMCV02048 (LWK Partners LLC v.
629 Palisades LLC, et al.)

RELEVANT BACKGROUND

On April 13, 2026,
plaintiff LWK Partners LLC f/k/a LightWell Keystone I, LLC (Plaintiff) filed
the complaint against defendant 629 Palisades, LLC, a California limited
liability company (Defendant), and Does 1-10, alleging breach of contract and
specific performance.

Plaintiff alleges that
it submitted a Residential Income Purchase Agreement and Joint Escrow
Instructions to purchase real property located at 1233 14th Street, Santa
Monica, California 90202 (the "Property") from defendant 629 Palisades, LLC
("Defendant"). [See Request for Judicial Notice ("RJN") at Exh. A at ¶¶ 1-2
(Pl.'s Compl.).] As relevant here, Lightwell Keystone I, LLC was organized in
California and changed its name to LWK Partners LLC. [See RJN at Exhs. B-C
(LightWell Keystone I, LLC's Articles of Organization and Amendment of the
Articles of Organization).]

INSTANT MOTION

On May 20, 2026, Defendant filed the

instant demurrer to the complaint. Plaintiff filed an opposition, and Defendant filed a reply.

MEET AND CONFER

The Court finds that Defendant has satisfied the meet and confer requirement. (Shiri Declaration ¶ 3.)

REQUESTS FOR JUDICIAL NOTICE

Plaintiff's requests for judicial notice (Ex. A-C [complaint, articles of incorporation, and article of organization filed with Secretary of State]) are granted. (Evid. Code, § 452, subd. (d), (h).)

EVIDENTIARY OBJECTIONS

The Court declines to rule on Plaintiff's objections to the Shiri Declaration with respect to the substance of the letters. But the Court considers the exhibits to the extent that they demonstrate a meet-and-confer effort.

DISCUSSION

Here, Defendant asserts the following: "Buyer/ Plaintiff LWK Partners LLC claims that they entered into a contract with Defendant, 629 Palisades, LLC for the sale of a property located at 1233 14" Street, Santa Monica, CA 90404 (the "Property"). Plaintiff claims there is a dually signed Residential Income Purchase Agreement ("RIPA"). If that was true why hasn't Plaintiff provided the RIPA in the complaint.... there was never a dually sign RIPA [Plaintiff] nor could there every be a legitimate dually signed contract with entity as the entity never existed, i.e. [Plaintiff] was never registered with the California Secretary of State ever, nor was it a registered LLC in any other state," (Demurrer at p. 1.)

In opposition, Plaintiff argues that the complaint alleges the parties entered into a written RIPA and began to perform until Defendant canceled the transaction without

justification, causing Plaintiff at least \$163,000.00 in damages. (Compl. ¶¶ 1-3.) Plaintiff contends that these allegations must be accepted as true at the pleading stage. The Court agrees. Defendant improperly attempts to resolve purported factual disputes rather than attack the sufficiency of the allegations in the complaint, which are accepted as true at this stage. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].)

Plaintiff is also

correct that the RIPA need not be attached to the complaint and that the case cited by Defendant, *Consolidated World Investments, Inc. v. Lido Preferred Ltd.* (1992) 9 Cal. App. 4th 373, 380, does not concern whether a contract must be attached to a Complaint. California law specifically permits a plaintiff suing on a written contract to plead the contract by legal effect rather than attaching the full contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [a plaintiff may “plead the legal effect of the contract rather than its precise language.”].)

Lastly, on the issue of

standing, Plaintiff states that Defendant again raises factual disputes unsuitable for resolution on demurrer and asserts that LWK Partners LLC is merely the updated name of Lightwell Keystone I, LLC, as specifically alleged in the complaint as “LWK Partners LLC f/k/a LightWell Keystone I, LLC.” (Compl. at p. 1.) On this issue, Plaintiff also provides Plaintiff’s Articles of Organization and Amendment of the Articles of Organization. (RJN Ex. B-C.)

The Court is not

persuaded by Defendant’s arguments in reply regarding the statute of frauds or Plaintiff’s standing. Defendant’s arguments do not change the fact that the allegations in the complaint are accepted as true at the pleading stage.

Based on the foregoing,

Defendant’s demurrer is **OVERRULED**. Defendant may have thirty (30) days in which to file and serve a response to the complaint.